

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY, 9 NOVEMBER 2021 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Ekins; Councillors Bird, Casson, Cook, Guise, Lloyd, Marks, Moorhouse, together with the General Manager, Director Corporate Services, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Principal Accountant, Management Accountant, Manager Built Environment, Manager Technology and Innovation, Development Assessment Officer (Planning), Records Management Coordinator, Technology Support Officer, Media & Community Relations Coordinator, Governance & Risk Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

Nil

Confirmation of Minutes of Previous Meeting

79/21 **RESOLVED** that the minutes of the following meetings be confirmed:

- Ordinary Meeting held on 12 October 2021
- Confidential Meeting held on 12 October 2021
- Extra Ordinary Meeting held on 25 October 2021

(Councillors Bird/Cook)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Disclosure of Interest

Nil

Public Access Session on Agenda Items

Prior to dealing with the circulated reports and associated information, a Public Access Session was held at which Council was addressed by the following:

Reports of the General Manager

14.1 - DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works

FOR	Stephen O'Connor, SLR Consulting
	Will Ellis, Potentia

14.2 Imagine Lismore End of Term Report 2017-2021

FOR	Peter Hovelroud
	Belinda Berkaya
	Janine Wilson

14.3 Request for part of Peace Park, Nimbin to be reclassified as Operational and transferred to Nimbin Neighbourhood & Information Centre

AGAINST	Big Rob
FOR	Natalie Meyers, Nimbin Neighbourhood & Information Centre

14.6 Write Off Debt – Quarry Sundry Debtor

AGAINST	Big Rob
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14.11 Annual Code of Conduct Reporting for Lismore City Council

FOR	Janine Wilson
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Mayoral Minute(s) and Condolence Motions

Notice of Rescission Motions

Notice of Motions

10.1 Red Fleet Vehicles

80/2181/21 **RESOLVED** that Council:

1. write to Premier The Hon Dominic Perrottet, Treasurer The Hon Matt Kean MP, Minister for Emergency Services The Hon David Elliott MP, Member for Lismore Janelle Saffin MP and the Auditor General outlining Council's concerns that recognising assets Council has no control over, rural firefighting equipment, including red fleet vehicles, will place an unfair financial burden on Council.
2. forward these concerns to the Local Government NSW conference to lobby on this matter for regional and rural councils.

(Councillors Ekins/Lloyd) (BP21/893)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

10.2 Cost Shifting

82/21 **RESOLVED** that staff include in the annual budget and the annual audited financial statement to Council a separate schedule which includes the amounts cost shifted onto Council each year and that the schedule is itemised into the areas cost shifted, as categorised in the LGNSW survey, and the amounts.

(Councillors Lloyd/Bird) (BP21/894)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Questions for Next Meeting

Altering Order of Business (Consideration of altering the order of business to debate matters raised during Public Access Session)

83/21 **RESOLVED** that the order of business be altered to debate the following matters raised during Public Access:

- 14.1 - DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works
- 14.2 Imagine Lismore End of Term Report 2017-2021
- 14.3 Request for part of Peace Park, Nimbin to be reclassified as Operational and transferred to Nimbin Neighbourhood & Information Centre
- 14.6 Write Off Debt – Quarry Sundry Debtor
- 14.11 Annual Code of Conduct Reporting for Lismore City Council

(Councillors Marks/Bird)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Elly Bird left the meeting, the time being 7:10PM

Councillor Elly Bird returned to the meeting, the time being 7:12PM

14.1 DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works.

MOTION moved that Development Application No. 2021/132 for the *Change of Use* from a *Service Station* to a neighbourhood shop comprising an internal fitout, car parking, landscaping and associated works be **refused** for the following reasons:

1. the likely impacts of the development on the locality, as it has not been adequately demonstrated that the proposed neighborhood shop will not have an adverse effect on the road network, and or the amenity of the area;
2. insufficient information has been provided in terms of likely social and community impact (EP&A Act Cl 4.15), inclusive of the impacts from the sale of alcohol:
3. the site is not suitable for the proposed development and therefore does not comply with Cl 4.15, of the Environmental Planning and Assessment Act 1979; and

4. the proposed development is not in the public interest (EP&A Act Cl 4.15) because of the risk to the safety of the customers/occupants, adjoining owners, pedestrians and vehicles.

(Councillors Lloyd/Casson)

FORESHADOWED MOTION that Development Application No. 2021/132 for the *Change of Use* from a *Service Station* to a neighbourhood shop comprising an internal fitout, car parking, landscaping and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*, including **prior to the issue of any Occupation Certificate**, 'No Standing' street signage is to be erected in accordance with Lismore City Council's Traffic Advisory Committee recommendations and applicable standards for the area identified as 'No Parking' in plan drawn by, *Rachcoff Vella Architecture Pty Ltd*, named *Proposed Site & Ground Floor Plan*, dated 5/7/2021. All costs shall be borne by the person acting on this consent.

Reason: *To facilitate safe and adequate access to and from the development. (EPA Act Sec 4.15(c))*

(Councillor Marks/Bird)

84/21

On submission to the meeting the motion was **DEFEATED** that Development Application No. 2021/132 for the *Change of Use* from a *Service Station* to a neighbourhood shop comprising an internal fitout, car parking, landscaping and associated works be **refused** for the following reasons:

1. the likely impacts of the development on the locality, as it has not been adequately demonstrated that the proposed neighborhood shop will not have an adverse effect on the road network, and or the amenity of the area;
2. insufficient information has been provided in terms of likely social and community impact (EP&A Act Cl 4.15), inclusive of the impacts from the sale of alcohol;
3. the site is not suitable for the proposed development and therefore does not comply with Cl 4.15, of the Environmental Planning and Assessment Act 1979; and
4. the proposed development is not in the public interest (EP&A Act Cl 4.15) because of the risk to the safety of the customers/occupants, adjoining owners, pedestrians and vehicles.

(Councillors Lloyd/Casson) (BP21/802)

Voting for: Councillors Casson, Guise and Lloyd

Voting against: Councillors Bird, Cook, Ekins, Marks and Moorhouse

85/21

AMENDMENT moved and **DEFEATED** to modify conditions 38 & 39 for opening hours Monday to Saturday 7.00am to 8.00pm and Sunday 7.00am to 7.00pm and the sale of alcohol to be Monday to Saturday 10.00am to 7.00pm and Sunday 10.00am to 6.00pm.

(Councillors Guise/Lloyd) (BP21/802)

Voting for: Councillors Casson, Guise and Lloyd
Voting against: Councillors Bird, Cook, Ekins, Marks and Moorhouse

86/21 On submission to the meeting the foreshadowed motion became the motion and was **RESOLVED** that Development Application No. 2021/132 for the *Change of Use* from a *Service Station* to a neighbourhood shop comprising an internal fitout, car parking, landscaping and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*, including **prior to the issue of any Occupation Certificate**, 'No Standing' street signage is to be erected in accordance with Lismore City Council's Traffic Advisory Committee recommendations and applicable standards for the area identified as 'No Parking' in plan drawn by, *Rachcoff Vella Architecture Pty Ltd*, named *Proposed Site & Ground Floor Plan*, dated 5/7/2021. All costs shall be borne by the person acting on this consent.

Reason: *To facilitate safe and adequate access to and from the development. (EPA Act Sec 4.15(c))*

(Councillors Marks/Bird) (BP21/802)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse
Voting against: Councillors Casson, Guise and Lloyd

14.2 Imagine Lismore End of Term Report 2017-2021

87/21 **RESOLVED** that:

1. the Imagine Lismore Community Strategic Plan End of Term report be received and noted.
2. End of Term report be incorporated into the Annual Report for 2020-2021.

(Councillors Cook/Marks) (BP21/570)

Voting for: Councillors Bird, Casson, Cook, Ekins, Lloyd, Marks and Moorhouse
Voting against: Councillor Guise

Councillor Darlene Cook left the meeting, the time being 8:22PM

14.3 Request for part of Peace Park, Nimbin to be reclassified as Operational and transferred to Nimbin Neighbourhood & Information Centre.

88/21

RESOLVED that:

1. Council supports in principle the ongoing development of the Sustainable Living Hub at 7 Sibley Street, Nimbin by the Nimbin Neighbourhood & Information Centre (NNIC) over part of 9 Sibley Street, Nimbin (Peace Park).
2. A Planning Proposal to amend the Lismore Local Environmental Plan 2012 to reclassify part of 9 Sibley Street, Nimbin from Community to Operational is brought back to Council.
3. Upon reclassification of that part of 9 Sibley Street, Nimbin, a report be brought back to Council.
4. Council provides in principle support to:-
 - a. The Transfer of that part of 9 Sibley Street, Nimbin (Peace Park), (Lot1 DP 305607) to NNIC.
 - b. The land being gifted to NNIC subject to the requirements of the *Local Government Act 1993* in relation to financial assistance.
5. All costs associated with the transfer of the land be paid by NNIC including Council's legal costs (if any).

(Councillors Marks/Bird) (BP21/779)

Voting for: Councillors Bird, Casson, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Absent: Councillor Cook

Councillor Darlene Cook returned to the meeting, the time being 8:24PM

14.6 Write Off Debt - Quarry Sundry Debtor

89/21

RESOLVED that the full debt, \$28,729.95, be written off (Debtor Account 2407).

(Councillors Moorhouse/Marks) (BP21/405)

Voting for: Councillors Bird, Cook, Ekins, Lloyd, Marks and Moorhouse

Voting against: Councillors Casson and Guise

14.11 Annual Code of Conduct Reporting for Lismore City Council

90/21 **RESOLVED** that Council receive and note the attached annual report on Code of Conduct statistics for Lismore City Council, the report will be forwarded to the Office of Local Government on 10 November 2021.

(Councillors Lloyd/Marks) (BP21/870)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Eddie Lloyd left the meeting, the time being 8:45PM

Councillor Nancy Casson left the meeting, the time being 8:50PM

Councillor Eddie Lloyd returned to the meeting, the time being 8:50PM

Councillor Nancy Casson returned to the meeting, the time being 8:52PM

Matters Arising

13.1 Amendment to Development Control Plan Part A Chapter 6 - Village, Large Lot and Rural Subdivision to include 528 Caniaba Road Structure Plan and amended public lighting provisions

91/21 **RESOLVED** that Council:

1. adopt the amended Lismore Development Control Plan Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision as provided at Attachment 1 of this report.
2. proceed to give public notice of its decision in Local Matters in accordance with Section 21 of the *Environmental Planning and Assessment Regulation 2000*.

(Councillors Marks/Bird) (BP21/756)

Voting for: Councillors Bird, Casson, Cook, Ekins, Lloyd, Marks and Moorhouse

Voting against: Councillor Guise

13.2 Submissions to draft Nimbin Village Development Control Plan (DCP).

92/21

RESOLVED that Council:

1. Adopt the amended Lismore Development Control Plan Part B Chapter 6 – Nimbin Village as outlined in this report and provided at Attachment 1 of this report.
2. Proceed to give public notice of its decision in Local Matters in accordance with Section 21 of the *Environmental Planning and Assessment Regulation 2000*.

(Councillors Bird/Marks) (BP21/825)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Neil Marks left the meeting, the time being 9:02PM

Reports of the General Manager

14.4 Delivery Program - Progress Report - Quarter 1 - July to September 2021

93/21

RESOLVED that Council receive and endorse the attached Delivery Program Progress Report for the period July to September 2021.

(Councillors Bird/Cook) (BP21/871)

Voting for: Councillors Bird, Casson, Cook, Ekins, Lloyd and Moorhouse

Voting against: Councillor Guise

Absent: Councillor Marks

Councillor Neil Marks returned to the meeting, the time being 9:04PM

Councillor Bill Moorhouse left the meeting, the time being 9:04PM

Councillor Bill Moorhouse returned to the meeting, the time being 9:06PM

14.5 September 2021 Quarterly Budget Review Statement

94/21 **RESOLVED** that Council adopt the attached September 2021 Quarterly Budget Review Statement.

(Councillors Cook/Bird) (BP21/899)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Casson, Guise and Lloyd

Councillor Elly Bird left the meeting, the time being 9:09PM

14.7 Investments - October 2021

95/21 **RESOLVED** that the report be received and noted.

(Councillors Cook/Marks) (BP21/663)

Voting for: Councillors Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Casson, Guise and Lloyd

Absent: Councillor Bird

Councillor Elly Bird returned to the meeting, the time being 9:11PM

14.8 2020/21 Financial Report

96/21 **RESOLVED** that in accordance with Section 419 of the *Local Government Act 1993*, the Audited Financial Statements for the year ended 30 June 2021 and Audit Report are presented to the public.

(Councillors Cook/Marks) (BP21/664)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

14.9 Recycling and Resource Recovery Strategy 2022-2032

That the:

1. draft *2022-32 Resource Recovery and Residual Waste Strategy: Sharing the Responsibility towards a Circular Economy and Resourceful Community* be placed on public exhibition for a period of at least 28 days.
2. draft strategy be reported back to Council by April 2022.
3. Council opposes the Waste to Energy proposal and exclude it from the strategy.

(Councillor Guise/Lloyd)

FORESHADOWED MOTION to defer the report to the next term of Council.

(Councillors Marks/Moorhouse)

97/21 On submission to the meeting the motion was **RESOLVED** that the:

1. draft *2022-32 Resource Recovery and Residual Waste Strategy: Sharing the Responsibility towards a Circular Economy and Resourceful Community* be placed on public exhibition for a period of at least 28 days.
2. draft strategy be reported back to Council by April 2022.
3. Council opposes the Waste to Energy proposal and exclude it from the strategy.

(Councillors Guise/Lloyd) (BP21/821)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise and Lloyd

Voting against: Councillors Marks and Moorhouse

14.10 Digital Signing of Council Meeting Minutes

98/21 **RESOLVED** that Council resolve that minutes of Council meetings are to signed digitally to allow them to be kept as electronic records.

(Councillors Bird/Marks) (BP21/822)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Committee Recommendations

15.1 Traffic Advisory Committee Minutes - Meeting of 20 October 2021

99/21 **RESOLVED** that the minutes be received and adopted and the recommendations contained therein be adopted.

(Councillors Moorhouse/Cook) (BP21/890)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

15.2 Floodplain Management Committee Minutes - Meeting of 19 October 2021

100/21 **RESOLVED** that the attached minutes of the Lismore Floodplain Management Committee meeting held on 19 October 2021 be received and the recommendations contained in the minutes be endorsed.

(Councillors Bird/Ekins) (BP21/891)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

15.3 Planning Review Committee Meeting Minutes 26 October 2021

101/21 **RESOLVED** that the minutes be received and adopted and the recommendations contained therein be adopted.

(Councillors Bird/Cook) (BP21/896)

Voting for: Councillors Bird, Casson, Cook, Ekins, Lloyd, Marks and Moorhouse

Voting against: Councillor Guise

15.4 Audit Risk and Improvement Committee Meeting - 23 August 2021 & 22 October 2021

- 102/21 **RESOLVED** that the unconfirmed minutes of the 23 August 2021 and the extra ordinary 22 October 2021 meeting be received and noted, and the recommendations contained therein be adopted.

(Councillors Cook/Bird) (BP21/897)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Casson, Guise and Lloyd

Documents for Signing and Sealing

16.1 Documents for Signing

- 103/21 **RESOLVED** that Council note the following tenure be executed under delegated authority by the General Manager:
- A. **New Outdoor Dining License with Mr Che Fung Lo of Sparkle LL Pty Ltd T/A Café Capello (ABN 17 654 027 068)** over the improved road reserve (blister) in front of 24 Carrington Street, Lismore (Lot 1 in DP 1030966). (ref AF21/3714)
 - B. **New Grazing License to Tregeagle Landcare Group (ABN 96 238 710 264)** for Crown Reserve No. 33732: Part of 820 Tregeagle Road, Tregeagle (582 DP 728646) for a six (6) month term (no options). (ref P14630)
 - C. **Renew License to Lismore and District Financial Counselling Service (ABN 12 177 965 157)** for Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 1, Suite 2, Suite 4, Suite 4A and Suite 5A of 165 Molesworth Street, Lismore (Lot 1 DP118542) for a one (1) year term (no options). (ref AF17/1581)
 - D. **Renew License to Sigrid Macdonald and Hilary McPherson**
Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 3A of 165 Molesworth Street, Lismore (Lot 1 DP118542) for a two (2) year term (no options). (ref AF19/2458)
 - E. **Renew License to Lismore Croquet Club Incorporated (ABN 22 483 195 191)** for Crown Reserve No. 85348: Spinks Park Croquet Court, 115 Molesworth Street, Lismore (Lot 2 DP1235498) for a five (5) year term (no options). (ref AF17/1536)
 - F. **Easement for Tullera Community Hall Inc (ABN 85 128 008 001)**
Burdened Council Land: Spinaze Park, 686 Dunoon Road, Tullera (Lot 32 DP 856398)

Benefited land: Tullera Community Hall, 682 Dunoon Road, Tullera (Lot 1 DP 320291)
Owned by: Tullera Community Hall Inc (ABN 85 128 008 001)
Purpose: Easement to drain sewerage 3m wide
Location: To be determined by survey
Compensation: Market value
Costs: Council's legal, valuation and administration costs to be paid by applicant. (ref CDR21/1766)

G. General Manager Delegation

Effective for the period from 10 November 2021 until 8 February 2022, Council delegate authority to the General Manager to sign substantially negotiated and ready for execution agreements under existing delegations, subject to regular updates being provided to Councillors on executed agreements during this period.

(Councillors Marks/Bird) (BP21/873)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Financial Assistance – Section 356

Confidential Matters – Closed Council Meeting

104/21 **RESOLVED** that Council now exclude the press and public and meet in Closed Council to consider the following matters;

Item	18.1 Sundry Debtors Accounts Write Off
Grounds for Closure	Section 10A(2) (b):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to: the personal hardship of any resident or ratepayer.

(Councillors Marks/Bird)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Resumption of Open Council

When the Council had resumed its former sitting, the Mayor reported that Council, meeting in Closed Session, had RECOMMENDED:

18.1 Sundry Debtors Accounts Write Off

RESOLVED that:

1. Council write off the outstanding balance of \$14,893.38 (Sundry Debtor Account 938).
2. Staff contact the financial manager to arrange a payment plan for rates that will not accrue further debt.

(Councillors Lloyd/Guise) (BP21/406)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Closure

This concluded the business and the meeting terminated at 10.28pm.

CONFIRMED 11 January 2022 at which meeting the signature herein was subscribed.

MAYOR